

Pokhpal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 1 April 2016 · Writ-C No. 12822 of 2016 · **Writ dismissed; petitioner left to pending partition suit.**

HEADNOTE

Where a co-owner seeks to restrain the distribution licensee from granting a new connection to another occupant without co-owner consent under the U.P. Electricity Supply Code, 2005, and a partition suit between them is already pending, the High Court will not entertain that relief under Article 226; the co-owner must pursue it in the civil suit.

FACTUAL SUMMARY

The petitioner, a co-owner, sought a writ restraining Dakshinanchal Vidyut Vitran Nigam Ltd. from granting an electricity connection to the fourth respondent without the petitioner's consent, relying on the U.P. Electricity Supply Code, 2005. His partition suit (Suit No. 183 of 2012) was already pending. A Division Bench of the Allahabad High Court declined to entertain the Article 226 petition for that relief and dismissed the writ, leaving the petitioner to pursue his rights in the pending civil proceedings.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.1.4

new connection — co-owner consent; writ vs pending partition suit

HOLDING

A writ under Article 226 to restrain the licensee from granting a new connection to a co-occupant without the petitioner's consent under the Supply Code will not be entertained where a partition suit between the parties is already pending; that relief is left to the civil proceedings. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SUPPLY CODE BARS A NEW CONNECTION WITHOUT CO-OWNER CONSENT

The Court did not construe clause 16.1.4 or decide if the connection could be granted; the petitioner was left to the pending partition suit. ¶ 1